

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Meet and Confer

Mueller met his statutory burden to meet and confer before filing this motion. (See, Decl. of Matthew S. Gordon [“Gordon Decl.”] at ¶ 5.)

Request for Judicial Notice

The request for judicial notice is denied as it is not relevant to the issues involved in this motion, which is already set for hearing before this court.

On the Merits

C.C.P. § 2017.020 permits the court to limit the scope of discovery “if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” C.C.P. § 2019.030 permits the court to generally issue a protective order if: (1) the discovery “is unreasonable cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive”; or (2) the discovery “is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” A party seeking a protective order must show good cause for issuance of the order by a preponderance of evidence. (*Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1145.)]

Mueller seeks a protective order allowing him to not respond to the 122 RFAs and FROG 17.1 served on him by Plaintiff. RFAs are generally subject to the “Rule of 35.” (C.C.P. § 2033.030(a).) A party may propound more than 35 RFAs if it attaches a declaration of necessity. (C.C.P. § 2033.050.) A declaration of necessity must show that the requests are warranted due to the “complexity or the quantity of the existing and potential issues in the particular case.” (C.C.P. §§ 2033.040, 2033.050.) If this is challenged by a motion for protective order, the propounding party bears the burden of justifying the additional requests. (C.C.P. § 2033.040(b).)

Plaintiff alleges in the SAC that Mueller, in his capacity as Chair of the Chemistry Department and Plaintiff’s direct supervisor, retaliated against him for making numerous safety complaints, and this retaliation included being forced to move labs; being denied paid leave to test for exposure; being required to buy necessary supplies with personal funds; being the subject of false statements and sworn at; being removed from a faculty meeting and certain teaching positions; being denied medical leave; and being denied salary and timely merit reviews, among other things. (SAC at ¶¶ 13, 18, 19, 22, 35-39,

41, 43-45, 53, 64, 67, 82, 83, 113, 114.) The RFAs served on Mueller, while voluminous, appear to seek information relevant to Plaintiff's claims. Specifically, they ask about Mueller's roles at the university; whether, based on training he received, certain or Plaintiff's acts were protected, and certain acts directed at him were adverse personnel actions; the circumstances surrounding various events and safety concerns Plaintiff raised; and how various situations regarding Plaintiff were handled. (See, Gordon Decl., Ex. 1.)

In his declaration supporting additional RFAs, Plaintiff states that he has reviewed all of the requests, none are being propounded for an improper purpose, and all are warranted because:

9. The events underlying this action span more than six years, from approximately 2019 through the present, and involve a complex institutional pattern of conduct by Defendant Mueller in his capacity as Chair of the Department of Chemistry at UC Riverside, in his capacity as Plaintiff's direct supervisor, and in his capacity as an experimental physical chemistry professor with peer-level subject matter expertise.

10. The discovery is necessary to establish a baseline of facts across the multiple distinct categories of Defendant Mueller's conduct at issue in this litigation, including but not limited to:

- a) Conduct during the November 25, 2019 lab walkthrough, including referring to Plaintiff as 'the fucking PI' while Plaintiff voiced safety concerns about asbestos dust release during the planned HVAC renovation work;
- b) Receipt and institutional response to Plaintiff's protected disclosures regarding electrical safety, asbestos contamination, carcinogen exposure, hydrogen handling infrastructure, and other workplace safety hazards under the UC Whistleblower Protection Policy and California Labor Code § 1102.5;
- c) Denial of compensation, salary support, and reimbursement to Plaintiff for losses, effort, and expenditures sustained as a result of the asbestos events in Pierce Hall in July and November 2019 and the subsequent institutional remediation, including but not limited to equipment damage, loss, and discarding;
- d) Decisions concerning Plaintiff's teaching assignments, including the mid-quarter removal of Plaintiff from teaching Chemistry 110B in Winter Quarter 2021 and the subsequent non-reassignment of Plaintiff to comparable courses;
- e) Establishing harassing intent through comparison with his conduct toward similarly situated faculty members;

f) Denial or conditional approval of teaching release, summer salary, and graduate student researcher support during the relocations of Plaintiff's lab from Pierce Hall to Pierce Annex in 2019 and from Pierce Annex back to Pierce Hall in 2021 and 2022; [and]

g) Decisions concerning Plaintiff's institutional review process resulting in the absence or delay of merit advancement for Plaintiff since July 1, 2019, despite the documented record of Plaintiff's research, teaching, and service performance.

11. Defendant Mueller's dual capacity, both as the institutional decisionmaker for many of these matters and as a peer-level subject matter expert in experimental physical chemistry, places within his personal knowledge a wide range of factual and professional propositions that are properly the subject of Requests for Admission to narrow the issues for trial.

(Gordon Decl., Ex. 1, Declaration for Additional Discovery at ¶¶ 6-13.)

This is sufficient for Plaintiff to meet his burden of justifying the RFAs served on Mueller. **Accordingly, the motion is denied.**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500492	KRAIN vs MOREHEAD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

All parties are ordered to appear for hearing. Remote appearances are permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer was inadequate. The court continues the hearing, requiring a code-compliant meet-and-confer regarding the operative FAC filed on May 6, 2026.

The hearing on the demurrer to the First Amended Complaint ("FAC") filed with the Court on May 6, 2026 is continued to September 8, 2026, at 8:30 a.m.. Defendant is